



THE REPUBLIC OF LIBERIA
LIBERIA MARITIME AUTHORITY

22980 Indian Creek Drive
Suite 200
Dulles, Virginia 20166, USA
Tel: +1 703 790 3434
Fax: +1 703 790 5655
Email: regsandstandards@liscr.com
Web: www.liscr.com

16 December 2020

Marine Advisory: 35/2020

(This Marine Advisory supersedes Marine Advisory 32/2020)

SUBJECT: Compliance with Amendments of 2018 to Maritime Labour Convention, 2006, as amended (MLC, 2006)

Reference: a) [ILC.107/Amendments of 2018 to MLC, 2006](#)
b) [Marine Notice MLC-003](#)

Dear Shipowner/Operator/Master:

The purpose of this Marine Advisory is to remind Owners, Operators and Masters that the 2018 amendments to MLC, 2006 enter into force on 26 December 2020. The amendments have been incorporated into the July 2020 revised Marine Notice MLC-003 in [reference b\)](#) and available on www.liscr.com.

Background

At the third meeting of the Special Tripartite Committee established by the Governing Body in accordance with Article XIII of the MLC, 2006, amendments to MLC 2006 related to seafarers' employment agreements, payment of wages and repatriation of seafarers while a seafarer is held captive on or off the ship were adopted on 27 April 2018.

The amendments were approved at the 107th session of the International Labour Conference held in June 2018 and ensure that seafarers held captive on or off a ship as a result of piracy or armed robbery continue to receive their wages.

Definitions

The terms *piracy* and *armed robbery against ships* shall have the same meaning as in section 2. of Marine Notice MLC-003.

Implementation

Owners, Operators and Masters shall ensure on and after 26 December 2020:

1. seafarers' employment agreements continue to have effect while a seafarer is held captive on or off the ship as a result of acts of piracy or armed robbery against ships, regardless of whether the date fixed for its expiry has passed or either party has given notice to suspend or terminate it; and
2. wages and other entitlements under the seafarers' employment agreement, relevant collective bargaining agreement or applicable national laws, including the remittance of any allotments continue to be paid during the entire period of captivity and until the seafarer is released and duly

repatriated in accordance with Standard A2.5.1 or, where the seafarer dies while in captivity, until the date of death as determined in accordance with applicable national laws or regulations.

As noted above, the 2018 amendments to MLC, 2006 have been incorporated into the July 2020 revised Marine Notice MLC-003, and therefore there is no need to revise the MLC Certificate and DMLC or seafarers' employment agreements.

If an owner, operator wishes to voluntarily revise its MLC Certificate and DMLC, the Administration is prepared to do so, during first renewal inspection following entry into force of the amendments on 26 December 2020. Such requests should be sent to MLC@liscr.com. A fee will be charged for processing the documents, if the owner, operator does not have a signed MLC inspection and certification agreement.

For more information, please contact Regulations and Standards at RegsandStandards@liscr.com or telephone +1 703 790 3434.

* * * * *